

25NWLC08716 25NWLC08716

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-08

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Case Number: 25NWLC08716 Hearing Date: September 8, 2026 Dept: Y

25NWLC08716: CAPITAL ONE N.A. vs ALI M KASSEM

Tentative Ruling:

The Court has read and considered the Motion to Set Aside Default Judgment ("Motion") filed by Defendant Ali M. Kassem ("Defendant") on April 30, 2026. This Motion was initially set for hearing on July 6, 2026. At the request of Plaintiff Capital One, N.A. ("Plaintiff"), the Court continued the Motion to September 8, 2026 allow Plaintiff the opportunity to file an opposition. No opposition has been filed by Plaintiff. The Court rules as follows:

The Court notes that Default was entered by the Clerk on July 21, 2025. Default Judgment was entered by the Clerk on August 4, 2025.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on March 21, 2025 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that he does not recall being personally served with the Summons and Complaint. He also states that he lived in a controlled-access building at the time of the alleged service and thus, it is unlikely that a process server reached his door. The Proof of Service also fails to describe the service location as a building with controlled access.

Defendant also argues that the Proof of Service filed in this case describes the person served as a "male approximately 5'10" to 6'0", weighing 160-180 pounds, with black hair." Defendant states, under penalty of perjury, that he does not match that description. Defendant is approximately 6'2", weighs approximately 200 pounds, and has brown hair.

Here, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure § 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

The Court declines to grant Defendant's Motion pursuant to Code of Civil Procedure § 473(d). Nonetheless, pursuant to Code of Civil Procedure § 473.5, the Court will GRANT Defendant's Motion and set aside the Default Judgment.

The Court grants Defendant 30 days leave to file a responsive pleading with the Court and serve it on Plaintiff.

The Court will set a OSC Re Status of Pleadings on June 2, 2027 at 8:30 a.m. in Department Y of the Norwalk Courthouse. The Court anticipates that this date will become the trial date when the responsive pleading is filed by Defendant.

Clerk to give notice.